

Court No. - 1

Case :- WRIT - C No. - 55809 of 2017

Petitioner :- Rahimuddin Khan

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shyam Babu Vaish

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Govind Mathur,J.

Hon'ble Ashok Kumar,J.

Learned counsel for respondents wants some time to complete instructions in the matter.

Adjournment prayed for is allowed.

List on 30.11.2017 at top of the list.

Order Date :- 23.11.2017

Shubham

(Ashok Kumar,J.) (Govind Mathur,J.)

Court No. - 1

Case :- WRIT - C No. - 55809 of 2017

Petitioner :- Rahimuddin Khan

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shyam Babu Vaish

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Govind Mathur,J.

Hon'ble Ashok Kumar,J.

Learned counsel for the respondents wants some time to complete the instructions and also to file a counter affidavit to the writ petition.

Time prayed for is allowed.

List on 14.12.2017.

Till then no coercive action be taken against the petitioner.

Order Date :- 30.11.2017

pk

(Ashok Kumar,J.) (Govind Mathur,J.)

Court No. - 1

Case :- WRIT - C No. - 55809 of 2017

Petitioner :- Rahimuddin Khan

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shyam Babu Vaish

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Govind Mathur,J.

Hon'ble Ashok Kumar,J.

As prayed by learned counsel for the petitioner, list this writ petition in the next cause list.

Interim order already in operation shall remain in currency till next date of listing.

Order Date :- 14.12.2017

pk

(Ashok Kumar,J.)

(Govind Mathur,J.)

Court No. - 40

Case :- WRIT - C No. - 55809 of 2017

Petitioner :- Rahimuddin Khan

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shyam Babu Vaish

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Heard Sri Shyam Babu Vaish, learned counsel for the petitioner and Sri Chandan Agarwal, learned counsel appearing for the Electricity Department.

It is pointed out by Sri Chandan Agarwal, learned counsel for respondent-Electricity Department that the provisional assessment notice has been prepared, a photostat copy of the same has been handed over to the learned counsel for the petitioner in Court today.

The petitioner may approach the respondent no. 3, who shall provide the petitioner with the entire details pertaining to the provisional assessment as also lodging of any first information report against the petitioner. It shall be open to the petitioner to make an enquiry into the prosecution, if any, pending against him under Section 135 of Electricity Act, 2003 and if he is aggrieved by any provisional assessment, it shall be open to him to approach the respondent no. 3.

What we find is that the writ petition has been filed without disclosing any such details either of the lodging of the FIR or provisional assessment carried out against the petitioner. There is nothing on record indicating that the petitioner was having an electricity connection on the date when the raid was carried out.

In the aforesaid circumstances, the allegation is that the petitioner has indulged in theft of electricity. We, therefore, are not inclined to entertain this writ petition without prejudice to the rights of the petitioner for redressal of his grievances and in the event the petitioner approaches the third respondent, he shall proceed in accordance with law upon any application being filed by the petitioner in terms of the Electricity Act, 2003 read with U.P. Electricity Supply Code, 2005.

Writ petition stands **consigned to records** with the aforesaid observations.

Order Date :- 16.4.2018/A. Verma